

Challenging Wills

A will can be challenged under these provisions of the Indian Succession Act (ISA)

► **Fraud, coercion or undue influence:** Section 61 of the ISA

► **Lack of testamentary capacity:** Under Section 59 of the ISA a minor (below 18) or person of unsound mind, and if the person is not capable of

understanding the consequences of the creation of a will

► **Illegal or immoral condition in the will:** Any clause of a will that is considered illegal or immoral can be declared void under

Section 127 of the ISA

► **Revocation:** Revocation or alteration of the original will during the testator's lifetime would be considered revoked and liable to be challenged before the court

► **Void bequests:** A will containing the following bequests would be declared void

- Beneficiary not alive during the testator's death
- Beneficiary not in existence at testator's death subject to prior bequest

130 |

lifetime to secure her loved ones in the future.

Planning a will is an exercise in control and lets women distribute their assets as per their choice. Sri-ram says, "Having a properly drafted will can prevent family disputes over inheritance. Estate planning can be used as a tool to both manage one's assets during their lifetime and to set aside assets for a specific purpose, such as meeting the education expenses of one's children, the maintenance expenses of parents, and the allocation of assets to persons other than legal heirs."

A person of sound mind and having attained majority can write their will. While there is no right age to start, experts recommend that a woman, working or not, should start as early as possible.

Of course, since inheritance is a matter of personal law, there are discrepancies. Nidhi Singh, Partner at IndiaLaw LLP, says, "Will planning may help resolve problems for only Hindu and Christian women in India and not Muslim women, as per the prevailing personal laws currently in force. The reason for this is that while the personal laws for Hindus and Christians in India permit a person to prepare a will for her entire property or assets, the same cannot be done in the case of Muslims in India," she says. Per Muslim personal law, a will is governed under the relevant Sharia law as applicable to the Shias and Sunnis. "Under Sharia law, self-acquired and

ancestral properties are considered equal and follow [similar] rules. If she makes a will, she cannot give away more than one-third of her property, and if her husband is the only heir, she can give two-thirds of the property by will," says Chundi of AasaanWill.

Besides, one must keep in mind that a will can be challenged under the provisions of the ISA. For instance, as per Section 63 of the ISA, a will not duly signed by the testator and two or either of the witnesses in the presence of each other can be contested. Similarly, it can be challenged if there is fraud, coercion, or undue influence, or if the person making the will is considered to have an unsound mind, or if there are illegal conditions set out in the will, among other reasons.

Clearly, there is a need to update some laws to ensure greater equality. Singh of IndiaLaw says all such efforts must begin with providing women greater awareness and legal education, in terms of their succession rights. "This should be done without pre-conditions of any particular region, religion, caste, creed, etc. In this regard, workshops must be carried out to make women aware of their rights. Finally, the government should carry out a survey as to how many women in India are actually aware of their succession rights." **BT**

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